

ELIZABETH II



1971 CHAPTER xxx

An Act to confer powers on the mayor, aldermen and citizens of the city and county of the city of Southampton with regard to Southampton Common; and for other purposes.
[1st July 1971]

WHEREAS—

(1) The city and county of the city of Southampton (hereinafter referred to as “the city”) is a county borough under the government of the mayor, aldermen and citizens of the city (hereinafter referred to as “the Corporation”):

(2) Southampton Common (hereinafter referred to as “the common”) is a common within the city which is vested in the Corporation as Lord of the Manor:

(3) It is expedient that the Corporation be empowered to close to the public or restrict public access to any part or parts of the common for certain purposes and during specified periods and to prevent vehicular access to any part or parts of the common other than in parking places provided under the powers of this Act:

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(4) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

(6) A plan showing the common and a book of reference relating thereto were in the month of March 1971 deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office, House of Commons, and with the town clerk of the city:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Southampton Corporation (Southampton Common) Act 1971.

Interpretation.

2.—(1) In this Act—

“ Cemetery Road ” means that road on the common which runs from Northlands Road in a north-westerly direction for approximately 367 yards and then in a south-westerly direction for approximately 350 yards to the gates of Southampton Cemetery;

“ the common ” means Southampton Common as delineated on the plan deposited as recited in the Preamble to this Act;

“ the Corporation ” means the mayor, aldermen and citizens of the city and county of the city of Southampton.

(2) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

Power to
close common.

3.—(1) Subject to the provisions of the next following section, the Corporation may for such time or times as they think fit close to the public or restrict public access to any part or parts of the common for the purpose of fairs, shows, circuses or other functions of a like nature on the common and of providing temporary parking areas for the use of the persons attending such fairs, shows, circuses or other functions:

Provided that—

- (a) no surface tarmacadam paths may be closed other than for the purposes of providing an enclosed site for the Southampton Show;
- (b) no highway may be closed under this section except the surface tarmacadam path which runs from a point in the Avenue, approximately 173 yards north of Highfield Road, in a west-south-westerly direction for approximately 233 yards to Coronation Avenue and that public access may not be restricted under this section over any highway except Coronation Avenue and the surface tarmacadam path leading from Holly Lodge to the eastern end of Cemetery Road.

(2) When the Corporation close, or restrict access to, any part or parts of the common under the powers of this section, they may permit vehicles to be parked thereon and may erect thereon seats, stands and structures and may demand and take or permit to be demanded and taken such reasonable sums as they think fit for the use of the part or parts so closed or access to which has been so restricted and may exclude therefrom any person who does not pay the reasonable sum demanded.

4. The Corporation shall not, under the powers of the last foregoing section, close to the public or restrict public access to any part or parts of the common—

Limitations
on power to
close
common.

- (1) for more than twenty-one consecutive days; or
- (2) for more than a total of sixty days in any year; or
- (3) so that there is at any one time more than fifty acres of the common so closed or to which access is so restricted.

5. The Corporation may erect on the common such fence or fences (not exceeding 3 feet in height above the ground) or form mounds or ditches as they may think appropriate for the purpose of preventing vehicles being driven on to any part or parts of the common from any road on or across or adjoining the common.

Fences to
prevent access
by vehicles.

6.—(1) The Corporation may use any part of the common adjoining and on either side of Cemetery Road for the provision of parking places for vehicles for use by persons resorting to the common or to any premises lying within the common or attending any activity on the common; and for that purpose may surface the same in such manner as they may think fit and construct and maintain such mounds, fences, kerbs and other physical boundaries (not exceeding 3 feet in height) as they may think necessary:

Parking of
vehicles
alongside
Cemetery
Road.

Provided that—

- (a) in respect of any use of the common under this section, the total width of the part or parts so used together

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with the width of that part of Cemetery Road which they adjoin shall not at any point exceed 72 feet measured at right angles to an imaginary line along the centre of Cemetery Road;

(b) not more than three-quarters of the total area, which (but for this proviso) might be used for the provision of parking places, may be so used.

(2) The Corporation may make such charges for the use of parking places so provided, and may erect such devices for the collection of charges for and controlling such use, as they may think fit.

Protection
for ice-cream
vendors.

7.—(1) Nothing in this Act shall prevent a person, with the consent of the Corporation and in accordance with such terms and conditions as they think fit, from bringing on to the common, or to any part thereof to which such consent relates, a vehicle for the sale or offering for sale of ice-cream or other similar commodities.

(2) Any person aggrieved by the refusal of the Corporation to give their consent under this section, or by any terms and conditions attached to any such consent, may appeal to a magistrates' court.

Protection
for certain
statutory
undertakers.

8. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers concerned, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires—

“ apparatus ” means mains, pipes or other apparatus and electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by the undertakers and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ the undertakers ” means—

the Southern Electricity Board and the Southern Gas Board; or either of them as the case may be:

(2) If in accordance with section 3 (Power to close common) the Corporation exercise their power to close to the public or to restrict public access to any part or parts of

the common, the undertakers shall be entitled to exercise the same rights and powers in respect of any apparatus in such part or parts as they enjoyed immediately before the passing of this Act:

- (3) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the said powers shall be so exercised as not to obstruct or render less convenient, so far as is reasonably practicable, the access to any apparatus:—

Section 3 (Power to close common);

Section 5 (Fences to prevent access by vehicles);

Section 6 (Parking of vehicles alongside Cemetery Road):

- (4) (a) Any difference which may arise between the Corporation and the undertakers under this section shall be determined by a single arbitrator to be appointed by agreement between the parties or, in default of agreement, to be appointed on the application of either party (after notice in writing to the other party) by the President of the Institution of Civil Engineers;
- (b) In settling any difference under this section the arbitrator may, if he thinks fit, require the Corporation to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with the use of any apparatus.

9. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Protection of members and officers of Corporation from personal liability.
1875 c. 55.

10. The sections of the Public Health Act 1936 mentioned in the Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application of general provisions of Public Health Act 1936.
1936 c. 49.

11. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

Costs of Act.

Section 10.
1936 c: 49.

SCHEDULE

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

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296	Summary proceedings for offences.
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328	Powers of Act to be cumulative.

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